

commit a breach of trust, otherwise general words would not have been construed to carry the trust estate (*f*). However, it was observed in one case by the late Vice-Chancellor of England that in his opinion it was not lawful for a trustee to dispose of the estate, but that he ought to permit it to descend; and that there was no material difference between a conveyance *inter vivos* and a devise, for the latter was nothing but a *post mortem* conveyance (*g*). But Lord Langdale considered that there was a wide distinction between a conveyance in the trustee's lifetime and a devise by his will; for during his life he had a personal discretion confided to him, which he could not delegate, but the settlor could not have reposed any personal confidence in the trustee's heir, for it could not be known beforehand who such heir would be; and that if the estate were allowed to descend, it might become vested in married women, infants, or bankrupts, or persons out of the jurisdiction; and he could not therefore hold it to be a breach of trust to transmit the estate by will to trustworthy devisees (*h*). [But this question has since the recent [*230] alteration in the law under which the trust *estate devolves as a chattel real ceased to be one of practical interest.]

15. **Whether a devisee can execute the trust.**—How far a *devisee* of the trust estate can execute the trust, will depend on the intention of the settlor, to be collected from the terms in which the instrument is expressed. Thus, real or personal estate *may* be so vested in A. that A. alone shall *personally* execute the trust; and in such a case, the *heir* or *executor* of A. though he took the legal estate, could not act as trustee (*a*); and *à fortiori* in such a case the *devisee*, though made the depositary of the legal estate, would have no authority to execute the trust (*b*). [It was laid down in former editions of this work that] if a settlor vested an

(*f*) See *ante*, p. 226, and the authorities cited in note (*a*) *Ib*.

(*g*) *Cooke v. Crawford*, 13 Sim. 98; and see *Beasley v. Wilkinson*, 13 Jur. 649.

(*h*) *Titley v. Wolstenholme*, 7 Beav. 435; and see *Macdonald v. Walker*,

14 Beav. 556; *Wilson v. Bennett*, 5 De G. & Sm. 479.

(*a*) See *Mortimer v. Ireland*, 11 Jur. 721.

(*b*) *Mortimer v. Ireland*, 11 Jur. 721; S. C. before Vice-Chancellor Wigram, 6 Hare, 196.